

22STCV39985 22STCV39985

County: los-angeles

Division: Civil Law and Motion

Department: 732

Hearing date: 2026-06-24

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C732%2C06%2F24%2F2026

Source SHA-256: 28caf8d9ab12dc65e9e14921e1f9d82388f992bc6e2a4cd89e10727c7aa532d9

Case Number: 22STCV39985 Hearing Date: June 24, 2026 Dept: 732

Ocean Blue Express v. EK Line, Inc., et al.

Wednesday, June 24, 2026

CASE NUMBER: 22STCV39985

UNOPPOSED

Nonparty Kaye Rose

& Partners LLP's Petition to Confirm Arbitration Award

Facts: This is an

action for breach of contract. The Complaint alleges as follows. Plaintiff

Ocean Blue Express (Plaintiff) entered into various contracts with EK Line,

Inc. (EK) to deliver goods ordered by EK. (Complaint ¶¶ 14–15.) Despite

Plaintiff's delivery on its promises, EK has failed to pay the \$249,511.37 owed

to Plaintiff, paying only \$73,036.57. (Complaint ¶¶ 16–20.) EK has also failed

to pay pursuant to an alternate payment schedule set forth in a settlement agreement executed by the parties in August 2022. (Complaint ¶¶ 31–34.)

EK's Cross-Complaint (or XC)

alleges as follows. Since January 2022, Plaintiff has been paid for delivery of goods, but has refused to release the goods nominally for past-due freight charges owed it on prior shipments. (XC ¶¶ 9–10.)

Procedural History: Plaintiff filed the Complaint on

December 22, 2022, alleging six causes of action:

1.

Breach of Contract

2.

Account Stated

3.

Open Book Account

4.

Breach of Contract (Settlement)

5.

Promissory Fraud

6.

Breach of Contract (Guaranty)

On August 28, 2023, EK filed a

Cross-Complaint alleging four causes of action:

1.

Breach of Written Contract

2.

Implied or Equitable Indemnity

3.

Breach of Maritime Tort Duties

4.

Rescission of Settlement Agreement

This court on June 14, 2024,

dismissed this lawsuit with prejudice pursuant to a settlement between the

parties, retaining jurisdiction to enforce the settlement under Code of Civil

Procedure § 664.6.

Nonparty Kaye,

Rose & Partners LLP, former counsel for Defendant and Cross-Complainant EK

Line, filed the present petition to confirm arbitration award on May 4,

2026. No opposition has been filed.

Analysis

I. MOTION TO CONFIRM ARBITRATION AWARD

“Any party to an arbitration in which an award has been made may petition the court to confirm, correct or vacate the award. The petition shall name as respondents all parties to the arbitration and may name as respondents any other persons bound by the arbitration award.”

(Code Civ. Proc. § 1285.) A petition must include (a) the substance of or have attached a copy of the agreement to arbitrate unless the petitioner denies the existence of such an agreement, (b) the names of the arbitrators, and (c) a copy of the award and the written opinion of the arbitrators, if any. (Code Civ. Proc. § 1285.4.)

A petition to confirm an arbitration award must be filed and served within four years of the date of the service of the signed copy of the award on the petition, but the petition may not be filed until at least ten days after service of signed copy of the award upon the petitioner. (Code Civ. Proc. §§ 1288, 1288.4.) Service of a petition must be “in the manner provided in the arbitration agreement for the service of such petition and notice.” (Code Civ. Proc. § 1290.4.) If the arbitration agreement does not provide the manner for service, “[s]ervice within this State shall be made in the manner provided by law for the service of summons in an action.”

(Code Civ. Proc. § 1290.4, subd. (b)(1).)

“A petition under this title shall be heard

in a summary way in the manner and upon the notice provided by law for the making and hearing of motions, except that not less than 10 days' notice of the date set for the hearing on the petition shall be given." (Code Civ. Proc. § 1290.2.)

Nonparty Kaye, Rose & Partners LLP

("KRP"), former counsel for Defendant and Cross-Complainant EK Line, Inc.

("EK") brings the present petition to confirm an arbitration award entered between itself and EK, in which an arbitrator awarded KRP \$30,935.20 for unpaid fees and costs. (Petition Exh. 2.)

This

court is without power to hear the petition in this case, as the action has been dismissed with prejudice. "Once a voluntary dismissal has been properly entered under Code of Civil Procedure section 581, "the trial court is without jurisdiction to act further in the action [citations] except for the limited purpose of awarding costs and statutory attorney's fees." (Mossanen v. Monfared (2000) 77 Cal.App.4th 1402, 1409.) Here, in its order of dismissal dated June 14, 2024, the court retained jurisdiction only to enforce the settlement between EK and Plaintiff Ocean Blue Express pursuant to Code of Civil Procedure § 664.6. (6/14/2024 Order.) KRP is not a party to the action.

It does not seek here to enforce the settlement between the parties, but rather

to confirm an arbitration award entered

pursuant to a dispute between itself and EK Line. No prior filing in this

matter indicates the court contemplated continuing jurisdiction to enforce

arbitration awards of fee disputes between the parties and their counsel.

The petition is therefore DENIED.

Superior Court of California

County of Los Angeles

Department 732

OCEAN

BLUE EXPRESS, INC.,

Plaintiff

v.

EK LINE, INC., et al.,

Defendants.

Case No.:

22STCV39985

Hearing Date: June 24, 2026

[TENTATIVE] RULING RE:

Nonparty

Kaye Rose & Partners LLP's Petition to Confirm Arbitration Award

Nonparty

Kaye Rose & Partners LLP's Petition to Confirm Arbitration Award is DENIED.

Petitioner to give notice.

Dated: June 24, 2026

Hon.

Richard S. Kemalyan

Judge

of the Superior Court